

SALE CONTRACT

No. : 05/MAC-DVR/CT/2023

- Based on the needs and capabilities of two Parties.

Today, Oct 11th, 2023, we are:

PARTY A (BUYER): MAP ACTIVE (CAMBODIA) CO., LTD.

Address: Room 1823 Register05, 18th floor, Canadia Bank Tower, Building #315, Monivong Blvd., Corner of Ang Doung Street, Phnom Penh 120211, Cambodia

Tax code: K003-902301485

Represented by: Mrs. NGUYEN HA PHUONG UYEN

Title: Director

PARTY B (SELLER): DVR CAMERA SECURITY CO., LTD

Address: #8C, Street Betong Sangkat Dangkao Khan, Phnom Penh, Cambodia

Tel: +855 16508060

Tax code: K006-902303369

Bank's account: 016508060 at ABA Bank

Swift code: ABAAKHPP

Beneficiary: DVR Camera Security Co., Ltd

Represented by: Mrs. SOUN SODANY

Title: Director

After discussion, we agreed to sign into the contract with the following terms:

ARTICLE I: LOCATION, TIME OF IMPLEMENTATION

- 1.1. Locations of construction: New Balance Store, Aeon Phnom Penh, 132 Samdach Sothearos Blvd (3), Phnom Penh, Cambodia.
- 1.2. Time of implementation: As the request of Party A.

ARTICLE II: GOODS – SPECIFICATIONS

Party B agrees to provide Party A: POS system at the address requested by Party A as stipulated in Article I. Party B is responsible for the origin, quality, packaging and trademark of the Goods to ensure compliance with the regulations and standards of the manufacturer. All accessories are new 100%, unused in any form, details of devices and services are as bellow:

No.	Description	Unit	Q'ty	Unit price (USD)	Amount (USD)
1	HP Pro Mini 400 G6 - Intel Core i5 - RAM: 16GB DDR4 - SSD: 512 GB - Mouse & Keyboard - VESA Mounting Kit	pc	1	979.00	979.00
2	Windows 11 Pro	license	1	205.00	205.00

No.	Description	Unit	Q'ty	Unit price (USD)	Amount (USD)
3	Monitor HP P204V 19.5inch	pc	1	184.00	184.00
4	A4 Printer HP Laser Jet M107A	pc	1	160.00	160.00
5	Scanner 2D USB QW2100	pc	1	128.00	128.00
6	Pole Display Birch DSP-V9	pc	1	202.00	202.00
7	Printer Cashier EPSON TM-T82III (USB + LAN)	pc	1	250.00	250.00
8	Combination Cable Lock (Security Lock) Kingmaster LU-198 (2M)	pc	1	21.00	21.00
9	Cash Drawer MAKEN MK-410	pc	1	90.00	90.00
10	Switch Cisco CBS110-16T-EU 16 Gigabit ports	pc	1	200.00	200.00
11	USB HUB Orico 4 USB ports 3.0 (W5P-U3-30)	pc	1	15.00	15.00
12	UPS APC BVX1200LI-MS	pc	1	190.00	190.00
13	WiFi Access Point Ubiquiti - UAP NanoHD included POE injector	pc	1	318.00	318.00
14	PDT Zebra TC26BK-11B232-A6	pc	1	848.00	848.00
	Sub Total				3,790.00
	VAT 10%				379.00
	Total (VAT included)				4,169.00

ARTICLE III: VALUE OF CONTRACT

Value of contract is: **4,169.00 USD (VAT included)**

In words: Four thousand, one hundred and sixty nine U.S dollars.

The above price is the actual and package price include: delivery costs, the cost of installation, operation instruction for staff of Party A.

ARTICLE IV: TERM OF PAYMENT

Payment shall be made by bank transfer in 02 installments:

- a) The first payment: Party A shall pay 50% of the total contract value to Party B with the amount is **2,084.50 USD** (In words: Two thousand, eighty four U.S dollars and fifty cents) within 14 (fourteen) days after the parties signing the contract.
- b) The second payment: Party A shall pay the remaining 50% of the total contract value to Party B with the amount is **2,084.50 USD** (In words: Two thousand, eighty four U.S dollars and fifty cents) within 14 (fourteen) days after the date Party B complete all scope of work as stipulated in Article I and II, and the parties sign to confirm the acceptance minutes, Party A receive valid VAT invoice from Party B.

ARTICLE V: ATTACHED DOCUMENT AND WARRANTY

- 5.1. Attached document: Approval quotation, valid Commercial invoice, and acceptance of handover.
- 5.2. In case a problem occurs, Party A shall call Party B at +855 16508060 , Party B shall appoint technical staff to resolve incident within 48 hours after receiving information. In case Party B fails to remedy n the above time limit, Party A has the right to request the Third Party to fix these problems to ensure its business operations, and Party B must pay all costs related to the above-mentioned remedy.
- 5.3. Equipment provided by Party B to Party A must have a warranty letter from the manufacturer

ARTICLE VI: RESPONSIBILITIES OF EACH PARTY

Party A has responsibility:

- 6.1. Facilitate for party B to deliver the goods and sign for confirmation on the receipt of goods.
- 6.2. Checking the goods with party B to ensure the equipment was delivered by correct type as signed contract. When detecting errors in quantity, type and quality of products, Party A immediately informs Party B so that the Parties shall make a record as a basis for Party B to remedy.
- 6.3. Not arbitrarily modified and change accessories without discussion and unified opinion from party B.
- 6.4. Notify Party B (in writing/email) at least 01 (one) working day if there is a need to change the type and quantity of the goods after placing the order.
- 6.5. Have the right to refuse to receive and/or request Party B to deliver other replacement goods when Party B fails to deliver the goods with the correction of specifications and quality according to the Agreement.
- 6.6. Not responsible in case of late payment due to insufficient and correct payment documents provided by Party B.
- 6.7. Have the right to request Party B to pay the incurred costs, difference and compensation in case Party B violates the Contract obligations and causes damage to Party A.
- 6.8. Not responsible in case of late payment due to insufficient and incorrect payment documents provided by Party B.
- 6.9. All of payment of party A will not be refunded when party A do not execute to continuous for the terms of contract (without fault of Party B and/or force majeure event) or arbitrarily cancel contract.

Party B has responsibility:

- 6.10. Supply, installation and delivery equipment on time, to meet the requirements and progress as the signed contract.
- 6.11. To ensure that the Goods provided to Party A under this Contract are genuine and authentic goods. In case of supplying imitation goods, Party B is fully responsible before the applicable law.
- 6.12. Party B will pay all incurred costs during delivery and transport, installation of the goods.
- 6.13. Notify to party A to check the equipment before shipping the goods.
- 6.14. Provide to technical document of equipment for party A and operation instruction for staff of party A until they became proficient users.
- 6.15. Quickly respond to incident requests and troubleshoot issues to ensure that Party A's business is not disrupted.
- 6.16. In case of non-compliance quality and specification, Party B is obliged to deliver other goods instead (to ensure that Party A's requirements are fully met) or to resolve and correct errors and omissions within 10 (ten) working days from the time Party A notifies in writing or scans files via email of errors, omissions and returns the goods of poor quality. If Party B fails to make the replacement and/or continues to deliver goods of poor quality or inadequate quantity, Party A has the right to request the Third Party to provide, any loss, difference in value and damage to the goods. If damage caused by Party B, then Party B is responsible for payment and refund to Party A.

ARTICLE VII: ACCEPTANCE & HANDOVER AND WARRANTY

- 7.1. After completing the delivery and satisfactory acceptance conditions, Party B will notify Party A of the time for Acceptance and handover of equipment.
- 7.2. If more than 03 days from date of party B sent notice of delivery to party A, any reasons did not belong to party B's mistake, but Party A still to delay to acceptance and hand over, the equipment are considered acceptance.
- 7.3. Warranty period: For products in Article II, 01 (one) year warranty according to the manufacturer's warranty regulations (clearly noted in the warranty card accompanying the goods).
- 7.4. In case the device has a problem during the warranty period, Party A must not dismantle, replace any part in the machine or repair it, but must immediately notify Party B. If these regulations are not complied with, Party B has the right to refuse to take responsibility for the warranty.
- 7.5. Party B fixes the problem within 10 working days. In case the above time is exceeded, Party B must temporarily lend the same equipment to Party A during the troubleshooting period.
- 7.6. In case Party B fails to perform or performs the warranty without results in accordance with the warranty obligations, Party A will hire a third party to troubleshoot products and goods and all costs for remediation will be paid by Party B within the next 03 (three) working days from the date Party A provides documents issued by a third party on the cost of remediation.
- 7.7. If the Parties determine that the fault is caused by Party A, all costs incurred (travel, transportation, repair) will be paid by Party A.

ARTILCE VIII: DISPUTE RESOLUTION



- 8.1. In the course of delivery, if party A detect to incorrect delivery same as article 1, party A have right to stop the delivery of party B by letter, the party B will bear all damages occurred in the transport procedure.
- 8.2. The parties need to inform to together for the progress of contract. If there is any problems occurred, the parties should solve and discuss in a spirit of cooperation. The contract could not be canceled unilaterally.
- 8.3. In case Party B unilaterally does not continue to perform the contract (without fault of Party A and/or force majeure event) or unilaterally terminates the contract after confirmation to perform their obligation at this Contract, Party B must be fine at the rate of 8% of the violation contract value.
- 8.4. In case the problem cannot be resolved by the parties, it will be solved by competent court, the failed party will bear all related cost.

ARTIVLE IX: CASE OF FORCE MAJEURE

- 9.1. Cases of force majeure include but are not limited to: war, epidemic, fire, storm, flood, earthquake, riot. The force majeure verification must be based on valid legal supporting documents provided by the competent authority.
- 9.2. If a force majeure event occurs, the Parties will not be liable for failure to perform the Contract, provided that the Party experiencing the force majeure event has taken all measures to prevent or prevent the consequences of the force majeure event. result of force majeure circumstances and have notified the other Party. The Parties shall bear their own share of damage caused by force majeure circumstances.

ARTICLE X: TRANSFER RISK

The risk of damage or loss to the Goods shall be transferred from Party B to Party A from the time the Goods are completed payment and handed over to Party A's consignee representative.

ARTICLE IXI: GENERAL CONDITION

- 11.1 The parties promise to fully implement the terms stated in the contract. Each change must be mutually agreed and add in the document and must be signed by an authorized representative of both parties.
- 11.2 If any Party of this Agreement is found by a court of competent of this Agreement is found by a court of competent jurisdiction or other competent authority to be void or unenforceable, such provision shall be deemed deleted from this Agreement and the remaining provisions of this Agreement shall continue in full force and effect.
- 11.3 This contract is valuable from the signing date until the date of warranty expired. When warranty expires the contract would be considered to liquidate. This contract is made in 04 (four) copies in English with equal legal for each party.

REPRESENTATIVE OF PARTY A



NGUYEN HA PHUONG UYEN
Director

REPRESENTATIVE OF PARTY B



SOUM SODANY
Director